

NAPCS Unionization Research — State — Charter Sector Overview

Massachusetts — DLR (MA) Jurisdiction — May 2026

NAPCS Unionization Research • May 2026 • Template v8.0

Section 1: State Overview

State	Massachusetts
Labor Board	DLR (MA) — Massachusetts Department of Labor Relations
Governing Law	M.G.L. c. 71 §89 (Charter School Law — explicitly classifies charter school employees as public employees); M.G.L. c. 150E (Public Employee Collective Bargaining). Card-check (Written Majority Authorization / WMA) available — no election required.
Federal NLRB Jurisdiction	DLR (MA) has exclusive jurisdiction. Federal NLRB does not apply.
Right-to-Work	NOT a Right-to-Work State — Massachusetts has no right-to-work statute. MA charter school employees are classified as public employees under M.G.L. c. 71 §89(y) and bargain under M.G.L. c. 150E. Agency fee provisions are available in collective bargaining agreements. (No right-to-work statute applies to any MA charter school employer or employee.)
For-Profit Operator Status	For-profit charter holders prohibited by state law
Card-Check Available	YES — WMA (Written Majority Authorization) available under M.G.L. c. 150E — 50%+ authorization cards filed with DLR suffices for certification without an election. This eliminates the pre-election campaign period that NLRB-jurisdiction states require.
Registry Sweep	COMPLETE — April 2026 (Registry v11) — 73 charter schools searched
Research Window	April 2026 (initial DLR session); May 2026 (reconciliation — Registry v11)

Section 2: Charter Sector Landscape

Total charter schools in Massachusetts: 73 (Charter School Registry v133). Unionization census figures reflect confirmed organized schools as of the data currency date.

Category	Schools	% of Total	Notes
Total Unionized Charter Schools in Massachusetts	13	17.8%	Active CONFIRMED + DEPENDENT schools. Excludes 1 closed school. DLR (MA) jurisdiction for all MA charters.
Independently Organized (CONFIRMED)	8	9.6%	Codman (BTU/AFT, 2024), AMSA (Teamsters/2 units, 2014+2023), CCSC Cambridge (AFTMA, 2024), NHCS (BTU/AFT, 2024, first contract ratified March 2026), Cape Cod Lighthouse (AFT MA, 2011), City on a Hill (BTU/AFT/3 units, 2018), PVPa (UAW/2 units, 2018), Foxborough (FRCSTA independent, date TBD via DLR records request).
Structurally Covered — Horace Mann/BPS (DEPENDENT)	5	6.8%	Boston Green Academy, Dudley Street NS, UP Academy Dorchester, BDEA, Kennedy Academy — all BPS-BTU district CBA coverage. No independent DLR certification event. Date Unionized = school opening date.

Decertified (formerly organized)	1	1.4%	Conservatory Lab CS — certified AFTMA Oct 2008; decertified ~2011-2013. Exact date requires DLR records request.
No Labor Board Records Found	60	82.2%	No union evidence found in DLR(MA) database. Includes 2 NAPCS schools (Christa McAuliffe C2502001, Salem Academy C2504006) with no evidence found, 1 closed Horace Mann school (UP Academy Boston — merged), and remaining non-NAPCS MA charter schools.
Total Charter Schools in Massachusetts	73	100%	Source: Charter School Registry v50 (NCES/ELSI 2024-25; 73 open MA charter schools as of May 2026).

Charter Sector Enrollment

Total Charter Enrollment	48,192 students — 5.3% of state K–12 enrollment (915,932 total K–12 students)
Students in CMO/EMO-Affiliated Charter Schools	6,899 students in network-affiliated schools — 14.3% of total charter enrollment
Students in Organized Charter Schools	6,601 students (13.7% of charter enrollment) — 640 in CMO/EMO-affiliated schools (1.3%); 5,961 in independently organized schools (12.4%)
Data Sources	Charter enrollment: NCES ELSI 2024–25 / Charter School Registry v133. Total K–12 state enrollment: NCES ELSI 2024–25 (all public schools). Both figures from the same source and year.

Section 3: Charter Management Organizations & Education Management Organizations

Charter Management Organizations (CMOs) are nonprofit networks. Education Management Organizations (EMOs) are for-profit management companies. Data sourced from Charter School Registry v133. Union penetration reflects confirmed organized schools as of the data currency date.

CMO / EMO Name	Type	State Campuses	National Campuses †	Organized in State	Total Enrollment
Phoenix Academy Charter Schools	CMO	3	3	—	496
KIPP Massachusetts	CMO	2	2	—	2,283
Pioneer Charter School of Science	CMO	2	2	—	1,416
Hampden Charter School of Science	CMO	1	1	—	938
Uncommon Schools	CMO	1	2	—	1,126
UP Academy	CMO	1	1	1	640
TOTAL — All CMO/EMO Schools in Massachusetts		10		1 organized — 640 students in organized network schools (1.3% of total charter enrollment)	

† National Campuses reflects total campuses operated by this network across all states, as reported in Charter School Registry v133. Provides context for networks operating in multiple states.

‡ Network (type unclassified) = operator present in Charter School Registry v133 but not yet classified in CMO Reference data. Contact registry project to add classification for these records.

6 CMO (nonprofit). Approximately 63 schools operate independently with no CMO/EMO affiliation. Source: Charter School Registry v133.

Section 4: Legal Framework & Sector Overview

Findings are based on research as of May 2026.

1: Legal & Jurisdictional Framework

M.G.L. c. 71 §89 (Charter School Law — explicitly classifies charter school employees as public employees); M.G.L. c. 150E (Public Employee Collective Bargaining). Card-check (Written Majority Authorization / WMA) available — no election required. Massachusetts is not a right-to-work state (Massachusetts has no right-to-work statute. MA charter school employees are classified as public employees under M.G.L. c. 71 §89(y) and bargain under M.G.L. c. 150E. Agency fee provisions are available in collective bargaining agreements.). DLR (MA) has exclusive jurisdiction. Federal NLRB does not apply to charter schools in Massachusetts. Card-check recognition is available under WMA (Written Majority Authorization) available under M.G.L. c. 150E — 50%+ authorization cards filed with DLR suffices for certification without an election. This eliminates the pre-election campaign period that NLRB-jurisdiction states require..

2: Charter Sector Structure

Massachusetts operates 73 open-enrollment charter schools, enrolling approximately 48,192 students. 6 charter management organizations and education management organizations operate in Massachusetts. The largest networks by campus count are Phoenix Academy Charter Schools (3 campuses in state), KIPP Massachusetts (2 campuses in state), Pioneer Charter School of Science (2 campuses in state). Approximately 63 schools operate independently with no CMO or EMO affiliation. Network-level detail, including campus counts and total enrollment, appears in Section 3 above.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

Massachusetts charter school labor relations have received increasing press attention as the organizing wave accelerated between 2021 and 2026. WBUR (NPR Boston), GBH News, and the Boston Globe have covered key certifications: NHCS (BTU 2024, first contract March 2026), Codman Academy (BTU 2024), and CCSC Cambridge (AFTMA 2024). The Education Law Center and MTA (Massachusetts Teachers Association) have issued public communications on charter organizing. The Pioneer Institute — the state's leading charter advocacy think tank — has not taken a public position on charter labor relations, a notable silence given its historical opposition to charter regulations.

Stakeholder Communications

BTU (Boston Teachers Union) is the most active charter union communicator in MA, maintaining public announcements for NHCS, Codman, and City on a Hill certifications. AFTMA (American Federation of Teachers Massachusetts) communicated the CCSC Cambridge certification. PVPA's UAW Local 2322 is the most publicly documented MA charter union, posting CBAs at uaw2322.org. The DESE CBA portal (dese.ma.gov) is the authoritative access point for all MA charter school CBAs under the Education Reform Act. No documented employer counter-organizing campaigns or ULP charges by any MA charter operator during the 2021-2026 organizing wave. Most MA charter certifications occurred via card-check (Written Majority Authorization under DLR), meaning no election period during which employer communications would be expected. The exception is Foxborough Regional Charter School, where the CBA was negotiated without any public record of the organizing campaign — the contract appeared on the DESE portal without prior press coverage.

Legislative Context

Massachusetts DLR (Department of Labor Relations) administers PELRA — all MA charter schools are public employers and their staff have card-check organizing rights. The Education Reform Act (G.L. c. 71, §89) requires all MA charter schools to file CBAs with DESE when ratified, making Massachusetts the only state in the NAPCS dataset with a mandatory public CBA portal for charter schools. This transparency requirement makes MA the most research-accessible charter labor market in the

dataset. The Horace Mann charter structure (BPS-authorized, BTU-covered by statute) is unique in MA and has no equivalent in any other NAPCS state.

Section 6: Contract & CBA Access Registry

DLR (MA) public contracts portal. Direct PDF links may require a records request for full text.

School / Network	Union	CBA Status & Term	Contract Access
AMSA	AMSA Educators Association / Teamsters Local 170	Active Unknown	DESE portal orgcode 04300000
PVPA	UAW Local 2322	EXPIRED — successor in progress July 2023–June 2026 (EXPIRED)	DESE portal orgcode 04790000; uaw2322.org
Foxborough Regional CS	FRCSTA (independent)	Active September 13, 2024–June 30, 2027	DESE portal orgcode 04460000 ONLY — no other source
City on a Hill	BTU Local 66	Active (assumed) Unknown	DESE portal; BTU website
NHCS	BTU Local 66	Active — first contract ratified March 2026 First contract (period TBD)	DESE portal; BTU website
5 Horace Mann schools	BTU Local 66	Active — BPS-BTU district CBA September 2024–August 2027	BPS website; BTU website